

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Case No: C.R No.678-D/2002

Punjab Technical Board Versus Arif Irshad etc

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties of counsel, where necessary.
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20.04.2015 Haji Muhammad Aslam Malik, Advocate for petitioners.
Mr. Muhammad Shoaib Khan Bazdar, Advocate for
respondent No.1.

 This application under section 115 of Code
of Civil Procedure (CPC) by way of revision
petition challenges the judgment and decree dated
14.03.2002 passed by the Addl. District Judge,
Layyah. By the said impugned judgment and
decree, the judgment and decree dated 24.4.2001
passed by Civil Judge, Layyah was set aside.

2. The operative part of the judgment of the
Addl. District Judge, Layyah is reproduced as
under:

*“10. For the foregoing reasons, the appeal
merits acceptable and the same is accepted by
setting aside the judgment and decree of the
learned trial Court. Resultantly, the suit is
decreed with the direction to the respondents-
defendant to:*

*(i) declare the appellant as successful
candidate in C-Com examination held in
1997: and*

(ii) *declare the result of D-Com examination in respect of the appellant held in 1999.”*

3. It is clear that the impugned judgments and decrees of the courts below are inconsistent and at variance with each other. However, I shall be guided by the observations of Supreme Court of Pakistan in Amjad Ikram v. Asiya Kausar (2015 SCMR 1) which are to the following effect:

“...Even otherwise, in case of inconsistency between the learned trial Court and the Appellate Court, the findings of the latter must be given preference in the absence of any cogent reason to the contrary, as has been held by this Court in the judgments reported as Madan Gopal and 4 others v. Maran Bepari and 3 others (PLD 1969 SC 617) and Muhammad Nawaz through LRs. V. Haji Muhammad Baran Khan through LRs. And others (2013 SCMR 1300).”

4. I have gone through the judgments of the courts below and have found that the judgment dated 24.4.2001 of Civil Judge is cursory and whimsical. On the other hand, the Addl. District Judge has considered and relied upon the entire facts and circumstances of the case as well as the evidence brought forth by the parties.

5. The relevant facts are that the respondent herein filed a suit for declaration with consequential relief of permanent and mandatory injunction and it was averred in the plaint that the

respondent got admission as private candidate in Certificate in Commerce (C.Com) in Government Commercial Training Institute in 1997. The respondent appeared as a private candidate and was declared successful by securing 323 out of 650 marks. He was admitted for Diploma in Commerce (D.Com) in 1998 and appeared for its examination in that year but failed in the subject of English. The respondent appeared in the supplementary examination held in 1999 but the result was withheld and the reason put forth was that he could not succeed in C.Com examination in two subjects viz. English and Commerce. His precise submission was that once he had been declared successful in the said subjects, the petitioner-Board could not turn around and declare him unsuccessful.

6. The appellate court relied upon Ex.P.4 which was a Gazette notification issued in which the respondent had been declared as successful in C.Com examination. Thereafter, the appellate court proceeded to rely upon Mst. Asma Nadeem v. international Islamic University and others (2002 MLD 290) in support of the fact that errors in the notification were to be construed as arithmetical

errors and thus the petitioner-Board had no power to change the result by a revised notification as errors or omissions in notification would be confined to arithmetical errors. It was held that there was a legitimate exception in favour of the respondent on the basis of gazette notification Ex.P.4 which could not be taken away or changed to the detriment of the respondent as this would put the entire educational career of a student in jeopardy. Moreover, it was held as a fact that the revised result notification had not been brought to the notice of the respondent nor was he confronted with it at any stage and, therefore, the respondent had no knowledge of it. The recalcitrance of the Board could not be attributed to the respondent and used in order to work against him.

7. In view of the above, I find no infirmity in the impugned judgment and decree of the Addl. District Judge, Layyah and, therefore, this petition is dismissed.

(SHAHID KARIM)

JUDGE

Approved for reporting.

JUDGE

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Rafiqat Ali